

Business Fidelity Limited

Company Number 04710715

Sole Shareholder Written Resolutions

I confirm that these written resolutions are passed in accordance with regulation 53 of Table A of the Companies Act 1985, which is embodied in the Company's articles of association.

I, the undersigned, being the sole member for the time being entitled to attend and vote at general meetings of the Company pass the following resolutions and agree that the said resolutions shall for all purposes be as valid and effective as if they had been passed at a general meeting duly convened and held.

Ordinary Resolution

1. **That** the authorised share capital of the Company be increased from £10,000 to £500,000 by the creation of 490,000 ordinary shares of £1 each ranking pari passu in all respects with the existing ordinary shares of £1 each in the Company.

Special Resolution

2. **That** the regulations contained in the printed document attached to these resolutions be approved and adopted as the articles of association of the Company in substitution for and to the exclusion of all the existing articles of association of the Company.

Dated this 26 day of March 2004.

N. Kent

Nicholas R. Kent



The Companies Acts 1985 and 1989

Private Company Limited by Shares

**Articles of Association of
Business Fidelity Limited**

N. Ked.
26/3/04

Company Number 04710715

The Companies Acts 1985 and 1989

Private Company Limited by Shares

Articles of Association of Business Fidelity Limited

(adopted by special resolution passed on 26 March 2004)

Preliminary

1. Regulations 8, 24, 53, 69, 73 to 80 inclusive, 89, 94 to 97 inclusive, 115 and 118 shall not apply to the Company but otherwise the regulations contained in Table A shall apply subject to the modifications and additions made by these Articles.

Interpretation

2. In these Articles the following expressions have the following meanings unless the context otherwise requires:

“Act”	the Companies Act 1985 including any statutory modification or re-enactment thereof for the time being in force;
“Directors”	the directors for the time being of the Company or a quorum of such directors present at a meeting of the directors;
“Founder”	Nicholas R. Kent;
“Shares”	shares in the capital of the Company of whatever class;
“these Articles”	these Articles of Association as from time to time altered by special or written resolution;

“Table A”

the regulations contained in Table A as defined in Section 8 of the Act.

3. Except where otherwise specifically provided any reference to a **“regulation”** is a reference to a regulation contained in Table A.
4. In these Articles, unless the contrary intention appears, words importing the singular number include the plural number and vice versa, words importing one gender include all genders, words importing persons include corporations and the expression **“paid up”** includes credited as paid up.

Share capital

5. The authorised share capital of the Company at the date of the adoption of these Articles is £500,000 divided into 500,000 ordinary shares of £1 each.
6.
 - (a) The Directors are generally and unconditionally authorised for the purposes of section 80 of the Act at any time or times during the period of five years from the date of the adoption of these Articles to allot, or to grant any right to subscribe for or to convert any security into, shares in the authorised share capital of the Company at that date.
 - (b) At the expiry of the period of five years, the authority contained in paragraph (a) shall expire, but the Company may make an offer or agreement before the expiry of the authority which would or might require Shares to be allotted, or rights to subscribe for or to convert any security into Shares to be granted, after the expiry of the authority.
 - (c) Section 89(1), sections 90(1) to (5) and section 90(6) of the Act are excluded.
7. For the purposes of regulation 3 the terms and conditions for the redemption of redeemable shares shall be determined by the Directors at the time of issue and shall be such and determined in such manner as the Directors in their absolute discretion think fit.

Variation of rights

8. If at any time the share capital of the Company is divided into different classes of shares, the rights attached to any class may, subject to the provisions of the Act, be varied either with the consent in writing of the holders of not less than three-quarters in nominal value of the issued shares of that class or with the sanction of an extraordinary resolution passed at a separate general meeting of the holders of the shares of that class. To every such separate general meeting all the provisions of these Articles relating to general meetings of the Company and to proceedings thereat shall, so far as applicable, apply except that the quorum shall be at least two persons together holding or representing by proxy at least one-third in nominal value of the issued shares of the class in question and at an adjourned meeting one person holding any number of shares of the class in question or his proxy.

Lien

9. Regulation 8 shall not apply. The Company shall have a first and paramount lien on every Share (whether or not it is a fully paid Share) for all moneys (whether presently payable or not) payable at a fixed time or called in respect of that Share and the Company shall also have a first and paramount lien on every Share (whether or not it is a fully paid Share) standing registered in the name of any member whether solely or one of two or more joint holders for all moneys presently payable by him or his estate to the Company, but the Directors may at any time declare any Share to be wholly or in part exempt from the provisions of this Article. The Company's lien (if any) on a Share shall extend to any amount payable in respect of it including all dividends payable thereon.

Transfer of Shares

10. The transferor of a Share shall be deemed to remain the holder of the Share until the name of the transferee is entered in the register of members in respect thereof.
11. (a) The Directors shall decline to register any transfer of any Share other than a transfer made pursuant to the provisions of Articles 12 to 17.
- (b) The Directors may also refuse to register a transfer of a Share on which the Company has a lien.
12. (a) Shares may be transferred by any member:
- (i) to the Company;
- (ii) to any employee of the Company with the consent in writing of the Directors;

- (iii) to any other person with the consent in writing of all the members;
 - (iv) in accordance with the provisions of Article 16 or Article 17.
13. (a) Except in the case of a transfer expressly authorised by Article 12, no person shall be entitled to dispose of any interest in Shares without first offering them for transfer to the holders of the other Shares. The offer shall be made by the proposing transferor by notice in writing to the Company (a "**Transfer Notice**") and may be in respect of all or some only of the Shares held by him (the "**Offer Shares**").
- (b) The Transfer Notice shall specify the Offer Shares and the price at which they are offered (the "**Prescribed Price**") and shall constitute the Directors as the agents of the proposing transferor for the sale of the Offer Shares to other holders of Shares at the Prescribed Price. The Transfer Notice may contain a provision that, unless all the Offer Shares are sold under this Article, none shall be sold. The Transfer Notice may not be revoked unless that provision applies or the Directors otherwise agree.
- (c) Within 14 days after the Transfer Notice is received by the Company, the Directors shall give notice to all the members (other than the proposing transferor) of the number and description of the Offer Shares and the Prescribed Price, inviting each of the members to whom it is addressed to notify the Company within 30 days whether he is willing to purchase any and, if so, what maximum number, of Offer Shares.
- (d) On the expiry of the 30 day period referred to in paragraph (c) the Directors shall allocate the Offer Shares to those members who have applied to purchase Shares and (if the number of Shares for which those members have applied exceeds the number available) the allocation shall be made so far as practicable in proportion to the nominal amount of share capital held by each of those members but shall not in the case of any member exceed the number of Offer Shares for which he has applied. If the Transfer Notice contains a provision that, unless all the Offer Shares are sold under this Article, none shall be sold, no allocation of the Offer Shares shall be made under this paragraph unless all the Offer Shares are allocated.

- (e) The Directors shall promptly give details of the allocation in writing to the proposing transferor and each member who has stated his willingness to purchase shares and, within seven days after such details are given, the members to whom the allocation has been made shall be bound to pay the purchase price for the Offer Shares allocated to them respectively and the proposing transferor shall be bound, on payment of the purchase price, to transfer the Offer Shares to the respective purchasers.
- (f) If in any case a proposing transferor, after having become bound to transfer any Shares to a purchaser, shall make default in transferring the shares, the Directors may authorise some person to execute on behalf of and as attorney for the proposing transferor any necessary transfers and may receive the purchase money and shall thereupon cause the name of the purchaser to be entered in the register as the holder of the Shares and hold the purchase money in trust for the proposing transferor. The receipt of the Company for the purchase money shall be a good discharge to the purchaser and after the name of the purchaser has been entered in the register of members of the Company the validity of these transactions shall not be questioned by any person.
- (g) Where more than one member has stated his willingness to purchase Offer Shares and through no default of the proposing transferor any purchase is not duly completed, the Directors shall forthwith notify all the other members who have stated their willingness to purchase Offer Shares and if, within seven days of such notice being given, those other members shall not between them duly complete the purchase of the Shares in respect of which there has been default in completion the provisions of paragraph (h) shall apply.
- (h) If, following the expiry of the 30 day period referred to in paragraph (c), any of the Offer Shares have not been allocated under paragraph (d), or if paragraph (g) applies, the proposing transferor may at any time within a period of 90 days after the expiry of the 30 or 7 day period (as appropriate) transfer the Offer Shares not allocated to any person and at any price (being not less than the Prescribed Price) provided that:
 - (i) the Directors may require to be satisfied that those Shares are being transferred under a bona fide sale for the consideration stated in the transfer without any deduction, rebate or allowance to the purchaser and, if not so satisfied, may refuse to register that transfer; and

- (ii) if the Transfer Notice contains a provision that, unless all the Offer Shares are sold under this Article, none shall be sold, he shall be entitled to transfer all but not some only of the Offer Shares, except where paragraph (g) applies, where he shall be entitled to transfer only those Shares in respect of which there has been default in completion.
 - (i) If a member or other person entitled to transfer a Share at any time attempts to deal with or dispose of any interest in his Shares otherwise than in accordance with this Article or Articles 12 or 14, he shall be deemed immediately before the attempt to have served the Company with a Transfer Notice in respect of those Shares and the provisions of Article 15(c) shall apply to those shares.
14. (a) Where a shareholder other than the Founder (a **"Deceased Shareholder"**) dies and his Shares in the Company are not transferred in accordance with Articles 12 or 13 before the end of the Relevant Period (as defined in paragraph (b)), the Directors may, and on the application of any other member shall, by notice in writing addressed to the personal representatives of the Deceased Shareholder and served at his address appearing in the register of members, require that his personal representatives give a Transfer Notice in respect of his Shares and, if they fail to give a Transfer Notice within 30 days from the date of service of the notice by the Directors, or if the Deceased Shareholder has no personal representatives, a Transfer Notice shall be deemed to have been given 30 days after the date of service of the notice by the directors and the provisions of Article 15(c) shall apply to the shares. The Prescribed Price shall be either:
- (i) as the personal representatives of the Deceased Shareholder and the Directors may agree; or
 - (ii) in the absence of such agreement within 30 days from the date of service of the notice by the Directors (or such longer period as the personal representatives and the Directors may agree or, if there are not personal representatives, as the Directors may decide) the Fair Price (as defined in paragraph (c)) as at the beginning of the financial year of the Company during which the Transfer Notice is given or deemed to have been received by the Company.
- (b) For the purposes of paragraph (a) the **"Relevant Period"** means the period of 12 months from the death of the Deceased Shareholder or, if probate is not granted in respect of the Deceased Shareholder's estate before the expiry of six months after his death, the period from his death until the expiry of six months from the date of the grant of probate or, if shorter, the period from his death until the expiry of 15 months from the date of his death.

- (c) The “**Fair Price**” means the price which the auditors of the Company state in writing to be in their opinion the fair value of the Shares on a sale as between a willing seller and a willing purchaser (taking no account of whether the Shares comprise a minority holding or carry control of the Company) and, if the Company is then carrying on business as a going concern, on the assumption that it will continue to do so. In stating the Fair Price the auditors (whose charges shall be borne by the Company) shall be considered to be acting as experts and not as arbitrators and their decision shall be final and binding on the parties.
15. (a) For the purposes of ensuring that a transfer of Shares is made in accordance with these Articles or that no circumstances have arisen whereby a Transfer Notice is required to be given, the Directors may from time to time require any member or the personal representatives of any Deceased Shareholder or the liquidator of any corporate member or any person named as transferee in any transfer lodged for registration to furnish to the Company such information and evidence as the Directors may think fit regarding any matter which they may deem relevant to such purpose. Failing such information or evidence being furnished to the satisfaction of the Directors within a reasonable time after request the Directors shall be entitled to refuse to register the transfer in question or, if no transfer is in question, to require by notice in writing that a Transfer Notice be given in respect of any Shares concerned. If no Transfer Notice is given within 30 days from the date of service of the notice by the Directors, a Transfer Notice shall be deemed to have been given in respect of those Shares 30 days after the date of service of the notice by the Directors and the provisions of paragraph (c) shall apply to those Shares.
- (b) Any direction, whether by way of renunciation, nomination or otherwise, by a member entitled to an allotment of Shares, to the effect that such Shares or any of them be allotted or issued to some person other than himself shall for the purposes of these Articles be deemed to constitute a transfer of the Shares comprised in such direction and the provisions of this Article and Articles 12 and 13 shall apply accordingly.
- (c) If a Transfer Notice is deemed to have been given in respect of Shares under Articles 13(i), 14(a) or paragraph (a) of this Article the provisions of Article 13 shall apply to those shares save that:
- (i) except in the case of a Transfer Notice deemed to have been given under Articles 14(a) the Prescribed Price shall be the Fair Price ascertained in accordance with Article 14(c) as at the beginning of the financial year of the Company during which the Transfer Notice is deemed to have been given; and

- (ii) the period of 14 days referred to in Article 13(c) shall run from the date on which the Prescribed Price is ascertained; and
- (iii) Article 13 shall not apply to any Shares in respect of which a transfer in accordance with Article 12 has been lodged for registration before the Prescribed Price has been ascertained.

Transfer after offer made to all holders of Shares

16. (a) A member (the **"Selling Member"**) may accept a bona fide offer (the **"Offer"**) from a third party (the **"Proposed Purchaser"**) for the purchase of the entire legal and beneficial interest in all Shares owned by it in the Company for a consideration payable in cash without any deferred consideration terms and otherwise on arms length terms (the **"Outside Offer"**) so long as the acceptance is conditional upon the terms of this Article being complied with in all respects and that condition is not waived.
- (b) The Selling Member may complete a sale pursuant to the Offer if:
- (i) it dispatches a notice within 30 days of accepting the Offer notifying all other holders of Shares (the **"Remaining Members"**) of the main terms of the Offer and that it has contracted to accept the Offer as permitted by this Article, such notice to constitute a warranty and representation by the Selling Member to the Remaining Members that the Offer and the Selling Member's acceptance of it is bona fide in all respects to the best of the Selling Member's knowledge, information and belief;
 - (ii) the Proposed Purchaser has made a binding written offer to the Remaining Members at the same price per Share and on terms that are not worse than those in the Offer that is kept open for at least 30 days from delivery of the notice sent by the Selling Member to the Remaining Members; and
 - (iii) the period referred to in (ii) has elapsed or all Remaining Members have accepted or completed the offer made to them.
- (c) The Remaining Members may accept and complete on an offer made to them by a Proposed Purchaser under this Article.

Mandatory transfer by the minority

17. (a) Members who hold between them 75% or more of the issued Shares (the “**Vendors**”) shall have the right (the “**Drag Along Right**”) to require all (but not some only) of the other holders of the issued Shares (the “**Called Shareholders**”) to transfer all of the Shares held by the Called Shareholders to any person or persons (other than an existing member) (the “**Third Party**”) who is a bona fide purchaser at arms length to whom the Vendors have agreed to transfer all their Shares (the “**Transfer Shares**”).
- (b) The Drag Along Right may be exercised by the Vendors serving notice to that effect (the “**Drag Along Notice**”) on the Called Shareholders specifying that each Called Shareholder is required to transfer its Shares (the “**Called Shares**”) pursuant to this Article. The Vendors shall provide the Called Shareholders with *such information as they may reasonably request in relation to the offer.*
- (c) A Drag Along Notice once given shall be irrevocable but shall lapse (and the obligations thereunder shall lapse) in the event that for any reason the Vendors do not transfer all of the Transfer Shares to the Third Party within 45 days from the date of the Drag Along Notice.
- (d) The Called Shareholders shall only be obliged to sell the Called Shares on terms that they shall be entitled to receive for their holdings of Shares a sum in cash (the “**Drag Along Price**”) equal to the highest price per Share paid or payable by the Third Party for any Transfer Shares **provided always that** for the avoidance of doubt this Article shall not be construed as requiring the Called Shareholders to give any representations, indemnities or warranties other than warranties as to title to the Called Shares owned by them.
- (e) Upon the exercise of the Drag Along Right in accordance with this Article each of the Called Shareholders shall be bound to sell its Called Shares for the Drag Along Price and otherwise in accordance with this Article.
- (f) Completion of the sale of the Called Shares shall take place on the date specified for that purpose by the Vendors to the Called Shareholders in the Drag Along Notice save that:
- (i) the Vendors may not specify a date that is less than 35 days after the date of the Drag Along Notice; and
- (ii) the date so specified by the Vendors shall be the same date as the date proposed for completion of the sale of the Transfer Shares;

unless, in the case of the sale by any particular Called Shareholder, that Called Shareholder and the Vendors otherwise agree.

- (g) If any Called Shareholder fails to carry out the sale of any of the Called Shares in accordance with this Article the Directors (or any of them) may authorise one of their number to execute a stock transfer of the Called Shares to the Third Party (or as it may direct) and the Company may give a good receipt for the purchase price of such Called Shares and may register the Third Party as holder thereof and issue to it (or as it may direct) certificates for the same whereupon the Third Party shall be indefeasibly entitled thereto. The Called Shareholder shall in such case be bound to deliver up its certificate or an indemnity in respect thereof for the Called Shares to the Company whereupon the Called Shareholder shall be entitled to receive the Drag Along Price which shall in the meantime be held by the Company on trust for the Called Shareholder but without interest.

Proceedings at general meetings

- 18. The minimum number of persons required to form a quorum shall be one (being a member or a proxy for a member or a duly authorised representative of a corporation) and regulation 40 shall be amended accordingly.
- 19. A poll may be demanded at any general meeting by the chairman or by any member present in person or by proxy and entitled to vote. Regulation 46 shall be amended accordingly.
- 20. (a) A general meeting or a meeting of any class of members of the Company may consist of a conference between members some or all of whom are in different places provided that each member who participates is able:
 - (i) to hear each of the other participating members addressing the meeting; and
 - (ii) if he so wishes, to address all of the other participating members simultaneously,whether directly, by conference telephone or by any other form of communications equipment (whether or not such equipment is available when this Article is adopted) or by a combination of those methods.
- (b) A quorum is deemed to be present if those conditions are satisfied in respect of at least the number of members required to form a quorum.

- (c) A meeting held in this way is deemed to take place at the place where the largest group of participating members is assembled or, if no such group is readily identifiable, at the place from where the chairman of the meeting participates.
 - (d) A resolution put to the vote of a meeting shall be decided by each member indicating to the chairman (in such manner as the chairman may direct) whether the member votes in favour of or against the resolution or abstains. Regulation 46 shall be amended accordingly.
 - (e) References in this Article to members shall include their duly appointed proxies and, in the case of corporate members, their duly authorised representatives.
21. (a) Regulation 53 shall not apply. A resolution in writing signed by or on behalf of all the members of the Company who would be entitled to vote on it if it had been proposed at a general meeting or at a meeting of any class of members of the Company shall be as valid and effectual as if it had been passed at a general meeting or at such class meeting (as the case may be) duly convened and held. The resolution may be contained in one document or in several documents each stating the terms of the resolution accurately and signed by or on behalf of one or more of the members. This Article is in addition to, and not limited by, the provisions in sections 381A, 381B and 381C of the Act.
- (b) Paragraph (a) shall apply as if the word “**signed**” included “approved by letter, facsimile, telex, e-mail and all other methods of reproducing or communicating in writing in visible form”.

Votes of members

22. A proxy appointed by a member of the Company under section 372 of the Act may vote on a show of hands as well as on a poll, but no person present shall be entitled to more than one vote on a show of hands. Regulation 54 shall be amended accordingly.

Alternate directors

23. (a) Regulations 65 to 68 inclusive shall apply and an alternate director may also be removed from office by notice to the Company given by the co-directors of the director who appointed him.
- (b) Regulation 69 shall not apply. An alternate director shall be deemed to be a director for the purposes of Article 35 and regulations 38, 44 and 65 to 68 inclusive but for no other purposes.

- (c) An alternate director shall alone be responsible for his own acts and defaults and he shall not be deemed to be the agent of the director appointing him.

Appointment and retirement of directors

24. No director shall be required to vacate his office by reason of his attaining the age of seventy years or any other age.
25. The directors shall not be required to retire by rotation. Regulations 73 to 80 inclusive and the last sentence of regulation 84 shall not apply.
26. The directors may appoint any person who is willing to act to be a director, either to fill a casual vacancy or as an additional director.

Directors' appointments and interests

27. Regulations 84 and 85 shall apply to directors (but not to alternate directors) subject to the following modifications:
- (a) Without prejudice to the generality of regulation 84 a director may act by himself or his firm in a professional capacity to the Company (except that of auditor) and he or his firm shall be entitled to remuneration for professional services as if he were not a director.
- (b) Without prejudice to the provisions of regulation 85(b), a director may also exercise the voting power conferred by shares in any other body corporate in any manner and in all respects as he thinks fit, including the exercise thereof in favour of any resolution appointing him or any of the other directors a director or officer or employee of such other company or voting or providing for the payment of remuneration to the director or officer or employee of any other body corporate.
28. Without prejudice to the generality of regulation 86(a) a general notice to the directors by a director that he is a member of any specified firm or company and is to be regarded as interested in any contract, matter or arrangement which may after the date of the notice be made or arise with such firm or company shall (if such director shall give the same at a meeting of the directors or shall take reasonable steps to secure that the same is brought up and read at the next meeting of directors after it is given) be a sufficient declaration of interest in relation to such contract, matter or arrangement for the purposes of regulation 85 and after such general notice is given it shall not be necessary to give any further notice relating to any particular contract, matter or arrangement with such firm or company.

29. Notices of meetings of the directors shall be given to all directors and to any alternate directors appointed by them. Regulations 66 and 88 shall be amended accordingly.

Proceedings of directors

30. Regulation 89 shall not apply. The quorum for the transaction of business of the directors shall be two directors present throughout the meeting, one of whom shall be the Founder. A person who holds office only as an alternate director shall, if his appointor is not present, be counted in the quorum.
31. Regulation 93 shall apply as if the word “**signed**” included “approved by letter, facsimile, telex, e-mail and all other methods of reproducing or communicating in writing in visible form”.
32. Regulations 94 to 97 inclusive shall not apply. A director may as a director vote and be counted as one of a quorum upon a motion in respect of any contract, matter or arrangement which he shall make with the Company or in which he shall be in any way directly or indirectly interested, and whether or not his interest or duty in respect thereof does or may conflict with the interests of the Company or his duty to the Company.
33. (a) A meeting of the Directors may consist of a conference between directors some or all of whom are in different places provided that each director who participates is able:
- (i) to hear each of the other participating directors addressing the meeting; and
 - (ii) if he so wishes, to address all of the other participating directors simultaneously,
- whether directly, by conference telephone or by any other form of communications equipment (whether or not such equipment is available when this Article is adopted) or by a combination of those methods.
- (b) A quorum is deemed to be present if those conditions are satisfied in respect of at least the number of directors required to form a quorum.
- (c) A meeting held in this way is deemed to take place at the place where the largest group of participating directors is assembled or, if no such group is readily identifiable, at the place from where the chairman of the meeting participates.

Notices

34. (a) For the purposes of regulation 111 "**writing**" shall include a telex or a facsimile.
- (b) Proof that an envelope containing a notice was properly addressed prepaid and posted shall be conclusive evidence that the notice was given and such notice shall be deemed effectively served 48 hours (five days if addressed overseas) after being put in the post prepaid by first class mail (airmail if addressed overseas), Saturdays, Sundays and public holidays at the place of receipt excepted. Proof that a telex was transmitted without interruption to the correct telex number and that a correct answerback code was received immediately before and after commencement of transmission shall be conclusive evidence that the notice therein was given, and it shall be deemed effectively served at the time of sending. Proof that a notice was properly sent by facsimile transmission shall be conclusive evidence that the notice was given and such notice shall be deemed effectively served 48 hours after the time at which it was sent by facsimile transmission. Regulations 112 and 115 shall be amended accordingly.

Indemnity

35. Every director, other officer or auditor of the Company shall, to the extent permitted by the Act, be indemnified out of the assets of the Company against any liability incurred by him in the execution of, or in relation to, his duties. This indemnity shall not apply to any liability to the extent that it is recovered from any other person and the indemnity is subject to such officer or auditor taking all reasonable steps to effect such recovery, so that the indemnity shall not apply to the extent that an alternative right of recovery is capable of being enforced. Subject to the Act, no director, other officer or auditor shall be liable for any loss, damage or misfortune which may happen to, or be incurred by, the Company in the execution of, or in relation to, his duties. This Article does not require the Company to purchase and maintain for any such officer or auditor insurance against any such liability, but does not restrict the Company from doing so. Regulation 118 shall not apply.